

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 857 of 2011

Nur Jahan Khatun

.....Convict-petitioner.

-Versus-

The State and another

.....Opposite party.

No one appears.

.....For the convict-petitioner.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

.....For the opposite party

Judgment on 30.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 01.01.2008 passed by the learned Additional Sessions Judge, 2nd Court, Bagerhat in Criminal Appeal No. 15 of 1991 arising out of C.R. Case No. 159 of 1990 (Bagerhat) (T.R. No. 149/1990) dismissing the appeal and upholding the judgment and order dated 15.01.1991 passed by the Magistrate, 1st court, Bagerhat Sadar, Bagerhat convicting the accused petitioner and another under section 419/468 of the Penal Code and sentencing them thereunder to suffer

rigorous imprisonment for a period of 02(two) years each with a direction that both the sentence shall run concurrently and acquitting accused Zoynal Sheikh from the charge should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

No one appears.

In view of the fact that this petty old criminal Revision arising out of 02(two) years sentence has been dragging before this Court for more than 12 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment, it appears from the record that this Court on 17.07.2011 at the time of issuance of the Rule granted bail to the accused petitioner for a period of 03(three) months, which was lastly extended on 01.09.2014 for a period of 06(six) months from the date of expiry and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 10.03.2015. In that view of the matter, I have no hesitation to hold that the convict petitioner is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC where it has been observed by the Appellate Division that Court would not act

in aid of an accused person who is a fugitive from law and justice.

In view of the above, this Rule must fail.

In the result, the Rule is discharged. The convict-petitioner, Nur Jahan Khatun is directed to surrender her bail bond within 3 (three) months from today to suffer her sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict petitioner.

Send down the lower Court records at once.